

Calendar Line 2

Case Name: *Maria Lopez vs. American Honda Motor Co., Inc.*

Case No.: 24CV450955

Defendant moves to compel the deposition of Plaintiff. It also seeks monetary sanctions against Plaintiff and/or Plaintiff's counsel in the amount of \$1,815.00 pursuant to the Code of Civil Procedure sections 2023.030 and 2025.450 subdivision (g)(1).

Motion to Compel Deposition of Plaintiff

Defendant, after receiving Plaintiff's objection to its deposition notice, emailed Plaintiff's counsel on February 13, 2026, requesting alternative dates. (Sadanaga Decl. ¶ 4.) When Plaintiff did not respond, Defendant emailed Plaintiff on March 16, 2026, requesting Plaintiff's availability, noting that it would involve the court if no response was made before March 24, 2026. (Sadanaga Decl. ¶ 4.) March 24 came and went. On April 1, 2026, Plaintiff's counsel emailed Defendant asking if the requested dates were provided, to which Defendant replied via email on April 3, 2026, that they had not, and again requested Plaintiff's availability. (Sadanaga Decl. ¶ 5.) Plaintiff failed to respond. On May 1, 2026, Defendant filed this motion. The Court is satisfied that Defendant attempted to resolve this discovery dispute prior to involving the Court and was left with no choice but to file the motion given Plaintiff's lack of engagement.

Misuses of the discovery process include "failing to respond or submit to an authorized method of discovery, making an evasive response to discovery, failing to confer or to attempt to confer...in a reasonable and good faith attempt to resolve informally any dispute concerning discovery." (Code Civ. Proc., § 2023.010.) Prior to Defendant's motion to compel, Defendant attempted several times to obtain alternative dates. (Sadanaga Decl. ¶ 6.) There was a lapse in Plaintiff's response from November 25, 2025, to April 1, 2026, and *again* from April 1, 2026, to June 1, 2026, after the motion had been filed. (Dias Decl. ¶ 2-5.) It was not until after Defendant filed this motion that Plaintiff ultimately responded. That response was to oppose the motion and finally to provide Defendant with acceptable dates - November 4, 6, and 9. (Dias Decl. ¶ 7.) This is a misuse of the discovery process.

Although Defendant has accepted the date of November 4, 2026, Plaintiff failed to confer properly to avoid the need for this motion. Therefore, the motion to compel the deposition of Plaintiff with document production within 10 days of the agreed upon date of November 4, 2026, is GRANTED.

Plaintiff shall appear for deposition and produce documents on or before November 14, 2026.

Monetary Sanctions

Code of Civil Procedure section 2023.030 states that the court may impose sanctions "against anyone engaging in conduct that is a misuse of the discovery process...unless it finds that the one subject to the sanction acted with substantial justification". (Code Civ. Proc., § 2023.030.) Plaintiff's opposition states that during the months of March and April 2026, internal staffing changes related to Plaintiff's handling attorneys transitioning out of the firm

contributed to “some delay” in communication with Defendant. (Dias Decl. ¶ 5.) On June 1, 2026, Plaintiff’s counsel took corrective measures by providing alternative dates of November 4, 6, and 9th, 2026. (Dias Decl. ¶ 7.) While such explanation may negate a finding of “deliberate obstruction,” it does not amount to substantial justification or other circumstances making the imposition of the sanction unjust.

Regarding the sanctions amount, Defendant’s minimal reply brief renders the anticipated 3 hours of attorney time unreasonable. The Court will award one hour of time toward the preparation of the reply. This brings the sanctions amount to \$1,165.00. Therefore, the Court GRANTS monetary sanctions against Plaintiff and/or Plaintiff’s counsel in the amount of \$1,165.00 to be paid within 30 days of the date of service of the final order.

Defendant shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 3

Case Name: *Dali Chaia v. Genesis Motor America*

Case No.: 25CV465834

In this Song-Beverly Warranty Act case, defendant Genesis Motor America LLC (“Genesis”) moves to compel arbitration based on two agreements with plaintiff Dali Levanovna Chaia (“Chaia”): (1) the 2022 Owners Handbook & Warranty Information; and (2) a Bluelink Connected Services Agreement (“CSA”).

Genesis’ request for judicial notice of the complaint in this matter is granted. (Evid. Code, § 452, subd. (d).) However, Genesis’ request for judicial notice of the 2022 Owner’s Handbook and Warranty Information is denied. (See *Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [noting that facts and propositions not reasonably subject to dispute include “facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs, and the like or by persons learned in the subject matter.”].) Simply because the 2022 Owner’s Handbook and Warranty Information is available on the Internet does not mean that it is not reasonably subject to dispute. (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10.)

Chaia’s evidentiary objections are overruled. The moving party can meet their burden of producing prima facie evidence of a written agreement to arbitrate by “attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-165 [internal citations and quotations omitted].) While the Court separately addresses the lack of Chaia’s signature below, Genesis has nevertheless attached a copy of the warranty to its motion and has set forth the relevant provisions in its moving papers. While Ms. Richards may not be the custodian of records for the warranty booklet, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Ibid.*) In any event, Genesis also attaches the warranty to the Declaration of Karla Osorio who claims she has personal knowledge “acquired in the course and scope of my job responsibilities at GMA and through my review of pertinent documents maintained and relied on in the ordinary course of business by GMA and its affiliated entities.” “[T]he custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758-759.) The objections to the Declaration of Vijay Rao are overruled for the same reasons as his declaration is also based on personal knowledge acquired in the course of his job duties and by review of the documents maintained in the ordinary course of business.

1. 2022 OWNERS HANDBOOK & WARRANTY INFORMATION

The vehicle warranty upon which Chaia brings this action is one of a series of warranties contained in a 48-page document titled “2022 Owner’s Handbook and Warranty Information” (“Owners Handbook”). The arbitration provision appears on pages 12-14 of the Owner’s Handbook and states, in relevant part, that the parties “each agree that any claim or disputes between us (including between you and any of our affiliated companies) related or